# THE ROOTS OF POLITICAL STABILITY IN KENYA

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SINCE INDEPENDENCE, Kenya, a country devoid of substantial mineral resources, has enjoyed the two rare blessings of economic growth and political stability which make her a showpiece in Africa. Indeed, it is this political stability that has been Kenya's main economic asset. Kenya's political stability survived two major crises following the murders of Tom Mboya in 1969 and J. M. Kariuki in 1975. The assessment of one commentator in the aftermath of of Kariuki's murder that 'the remarkable political stability . . . is breaking up'[1] has been proved wrong. Indeed, the fact that the country's political stability was so slightly affected by these crises points to the strength and resilience of its political system.

Most commentators tend to attribute this stability to the charismatic leadership of Jomo Kenyatta, the President of Kenya. Referring to the divisive legacy of colonial Kenya John Hatch states that 'yet most remarkably, under the universally accepted leadership of Jomo Kenyatta . . . Kenya created one of the best examples in the continent of multi-ethnic stability . . . . It is true that this remarkable degree of unity centred almost entirely on the personality of Kenyatta.'[2] Recently the same author, again referring to Kenyatta's personal role, said that he 'has earned a place in his country's affections unsurpassed in any African state.'[3] Another Kenya analyst put it bluntly: 'The President has been the cornerstone of Kenya's stability since independence.'[4] The local correspondent of an American newspaper subscribed to the same interpretation: 'President Kenyatta has easily weathered the crises besetting the last years of his rule mainly because he remains the father-figure of his country, more respected than feared. Kenyans affectionately call him *Mzee*—the old man.'[5] These are but few examples of what seems to have become the conventional wisdom.

This interpretation appears to be based on two assumptions: (1) that Kenyatta has enjoyed such high standing, prestige and reverence among his fellow Kenyans; (2) that Kenyatta's personal standing has been the source of Kenya's apparent political stability. These two assumptions require more thorough examination. The first and crucial assumption is admittedly difficult to examine

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1. *The Times* [TT], 17.3.1975.
2. J. Hatch, *Africa Emergent*, London, 1974, pp. 38–39.
3. *New African Development* [NAD], March 1977, p. 211.
4. C. Legum (ed.), *Africa Contemporary Record* [ACR], 1971–1972, p. B 126.
5. *U.S. News and World Report*, 2.8.1976.



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because Kenyatta's real standing is masked not only by the elusive nature of his leadership but also by a highly cultivated official myth. A brief outline of Kenyatta's political biography may therefore be needed to shed some light on the central issue of the effectiveness of his leadership.

Absence from Kenya's political scene had been the most outstanding feature of Kenyatta's political career until 1961. From 1931 to 1946 he lived in England and from 1952 he was in detention. While this kept him out of personal and factional rivalries and added an element of martyrdom to his leadership it also kept him out of touch with political realities and developments in Kenya. As president of the Kenya African Union (KAU) from 1947 to 1952 he was unable to establish himself as a national leader having great difficulties even in controlling the militants of his own Kikuyu tribe. In the late 1950s *Uhuru na Kenyatta* became the battle cry of the nationalist movement as a whole, but when he was released from detention in 1961, Kenyatta's efforts to unite the two nationalist parties under his leadership were frustrated. The leaders of the Kenya African Democratic Union (KADU) disowned him as a tribal rather than national leader. It took him time even to consolidate his leadership within the Kenya African National Union (KANU). Under his presidency factional strife continued to flourish. The Kamba followed Ngei out of KANU and the Luo showed signs of growing discontent with KANU and Kenyatta's leadership. It was only in late 1962 and early 1963 that KANU was finally united under Kenyatta in the face of the danger of losing the forthcoming crucial general elections.[6]

Since independence Kenyatta became, as an executive president, the focus of Kenya's political system and the object of an official campaign of adulation. It is doubtful, however, whether he has been universally revered as the father of the nation. The Luo who followed their own revered leader, Odinga, into the Kenya People Union (KPU) certainly expressed their dissatisfaction with Kenyatta's leadership.[7] In the aftermath of Mboya's murder distinct anti-Kenyatta feelings were expressed by the Luo. But even in his own tribe Kenyatta's supreme leadership has been under attack. The harsh criticism of the popular J. M. Kariuki was not directed against an impersonal system, but, at least implicitly, against Kenyatta and the 'royal family'. In the aftermath of Kariuki's murder in March 1975, Kikuyu were in the forefront of the anti-government and anti-Kenyatta campaign. In anonymous leaflets distributed in Nairobi by Nyeri Kikuyu, 'Kamau' [Kenyatta] was personally attacked in very extreme terms.[8] In March 1975 a Kikuyu student leader was arrested during

6. See the relevant chapters in J. Murray-Brown, *Kenyatta*, London, 1972; J. N. Crowley, *Colonial Policy and Nationalism in Kenya 1952–1963*, Ph.D. Thesis, University of Washington, 1967, pp. 206–211.
7. On the beginning of the KPU, see C. Gertzel, *The Politics of Independent Kenya 1963–1969*, Nairobi, 1970, pp. 73–94.
8. Anonymous leaflet by the self-styled 'Ex Freedom Fighters Association', March 1975; *Africa Research Bulletin*, May 1975, p. 3628.

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a meeting which was called to denounce a planned campaign of loyalty to Kenyatta. The same student had been arrested previously after saying that 'a cross-section of the Kenya people were against Kenyatta'.[9] A Kikuyu MP said with regard to Kariuki's murder: 'We are ruled by gangsters . . . are we ruled by people or devils?'[10] He made no distinction between the government and Kenyatta. There were reports that cattle belonging to Kenyatta had been maimed in Mau Mau style,[11] and bombs exploded near the State House in Mombasa, where Kenyatta was staying.[12]

Thus, the view that Kenyatta has been universally revered and that his charismatic personality is the key to the understanding of Kenya's political stability reflects the official myth rather than the reality. Unfortunately this simplistic personal interpretation has been adopted not only by occasional political commentators, but even as profound and knowledgeable a scholar as Colin Leys subscribes to it.[13] Leys, whose study of Kenya covers the years 1964–1971, might have been misled by Kenyatta's more impressive personal performance during the 1960s. Since then, however, the misuse of power by the 'royal family' in the accumulation of personal wealth has become common knowledge in Kenya,[14] and Kariuki's murder badly shattered the image of Kenyatta even in his own tribe. In addition, it has become apparent during the 1970s that the personal involvement of the aging president in the political process is steadily decreasing. Kenyatta spends little time in Nairobi, the seat of government. He spends most of his time in his Gatundu home or in the State Houses in Nakuru and Mombasa which have become intermittent foci of pilgrimage. Much of his time is spent at public functions and ceremonies, receiving delegations from all parts of the country and entertaining groups of tribal dancers. During his two-month summer tour on the Coast in 1977, Kenyatta took part in more than ninety-two public functions in State House and rural and urban areas in the province.[15] How much time can an elderly president spare for the running of his country? Thus, it seems that although he remains the ultimate source of authority, the operation and managing of Kenya's power structure must have passed to other hands. Kenyatta's political role seems to become more symbolic than real as the time wears on.

The proper understanding of Kenya's political stability demands a shift from this simplistic interpretation to the analysis of the regime's structural, institutional framework and its social basis. Thus, the emphasis must shift from the President to the presidency, from Kenyatta to the elaborate power structure which has been built up around him. Kenya may not be the best example of

9. *Africa Research Bulletin* [ARB], May 1975, p. 3628.
10. *Ibid*, p. 3562.
11. *ACR*, 1975–1976, p. B215.
12. *ARB*, April 1975, p. 3598.
13. C. Leys, *Underdevelopment in Kenya*, London, 1975, p. 253.
14. *ACR*, 1974–1975, pp. B203, B209; *ARB*, September 1974, p. 3380.
15. *The Standard* [TS], Nairobi, 28.9.1977.

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nation-building, but it is certainly an outstanding example of *regime*-building in Africa.

In a nutshell, Kenya's political stability rests on a balance within the military system, on the centralization of power within the state structure and on the neutralization of potential foci of organized opposition. The regime is supported by a relatively large proportion of the African bourgeoisie, whose members have vested interests in the system, and by the dominant position of Kikuyu tribesmen in the political and economic spheres. Political stability is also enhanced by the emasculation of the masses as a political factor and by the decline of the tribe as a base for political opposition. Finally, stability is served by a policy which combines a selective use of coercion against disruptive elements and the integration of opponents into the establishment.

The security forces, which constitute a major source of instability in modern Africa, have played a positive role in enhancing political stability in Kenya. Independent Kenya inherited from the British the well-trained and disciplined battalions of the King's African Rifles, a small but compact military force nurtured on the British tradition of subordinating the military to the civil government. The government of independent Kenya made efforts to preserve the healthy character of the army by adopting a policy of slow and gradual Africanization of the officer corps and by maintaining British influence. Until 1966 the army commander was a British officer. When he was replaced in December 1966 by Brigadier J. M. Ndolo, the government continued to employ several British officers in advisory roles in each of the three battalions. In addition, with the establishment of the navy and the airforce in 1966, the government appointed a British officer as chief of defence staff.[16] The last British adviser left only in 1975.[17] Kenyan officers continue to train in British military academies.

A wave of mutinies swept through East Africa in 1964. Although Kenya was affected only slightly, it was enough to alert the government to the danger of military coups. It realized that British tradition and supervision might not be enough to keep the army out of politics. Consequently the government began to redress the ethnic balance within the army as a means towards neutralizing it politically. At independence the army was composed, at both officer and rank-and-file levels, mainly of Kamba and Kalenjin tribesmen. After 1964 the government began infusing Kikuyu 'blood' into the army, and into the officer corps in particular. By 1967 22·7 per cent of the officers were Kikuyu compared with 28 per cent Kamba.[18] When Ndolo, a Kamba, was appointed army commander, there were already under him a few Kikuyu lieutenant-colonels.[19] The process of 'Kikuyuzation' of the army was acceler-

16. J. Murray, 'Succession Prospects in Kenya', *Africa Report*, November 1968, p. 47.
17. R. Mans, 'Kenyatta Middle Road in Changing Africa', *Conflict Studies*, No. 85, July 1977, p. 16.
18. J. M. Lee, *African Armies and Civil Order*, London, 1969, p. 110.
19. J. Murray, *op. cit.*, p. 47.

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ated during the 1970s following the abortive coup in 1971 in which Ndolo was involved.[20]

In addition to ethnic engineering within the army, the government established in the second half of the 1960s the General Service Unit (GSU), a paramilitary force, which operates as the praetorian guard of the regime. The GSU is much smaller than the army (about 2,000 against about 7,500)[21] but it is disciplined, well-equipped and highly mobile. It certainly cannot match the army as a whole, but it could be used selectively and with some measure of effectiveness should the army, or sections of it, become restive. There were rumours that during the tense period after Kariuki's murder GSU units guarded the army's main armoury outside Nairobi. While the army is in principle an apolitical force guarding the country's integrity from external enemies, the GSU is a political force, the regime's coercive arm against its internal enemies. It has been involved in action against restless university students and illegal squatters on large farms, and has been used in other circumstances where a show of force was deemed necessary.[22] Its commander was implicated in the murder of J. M. Kariuki.[23] The GSU is commanded by Ben-Gethii, a Kikuyu, and its officer corps is almost monopolized by members of the same tribe.

In addition to their dominant position in the army and the GSU, by 1968 there were Kikuyu at the head of the police, the CID and Special Branch.[24] Thus the Kikuyu have a large measure of control over all instruments of coercion in Kenya. This dominance is vital to the stability of the Kikuyu-dominated regime. Ethnic solidarity is still a potent force in a situation where ethnic control gives access to status, prestige and wealth. Officers, especially of higher rank in the security forces, have besides status and prestige access to material wealth. When Ndolo was forced to leave the army he retired to a 9,416 acres farm. He had at least one other business while still in active service.[25] A high-ranking Luo police officer had accumulated enough wealth to spend in an expensive election campaign which secured his election to Parliament.[26] Thus a mixture of British tradition, ethnic solidarity and material interests ensures that the military do not pose a threat to the regime and in fact support its stability.

If the military system is characterized by a neutralizing balance, the governing principle in the political system is the concentration of power around the President. At independence Kenyatta became Prime Minister, the head of state being the Governor-General representing the Queen. The Prime Minister's authority was limited by the regional constitution which vested

20. *ACR*, 1971–1972, p. B131; C. Leys, *op. cit.*, pp. 240–243.
21. *ACR*, 1975–6, p. B222.
22. C. Leys, *op. cit.*, p. 239; *ARB*, April 1975, p. 3598, May 1975, p. 3628.
23. *ARB*, June 1975, p. 3660.
24. J. Murray, *op. cit.*, p. 47.
25. C. Leys, *op. cit.*, p. 243.
26. *The Weekly Review* [TWR], Nairobi, 7.3.1977, p. 12.

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authority in the various regional authorities. In December 1964, a year after independence, the regional constitution was abolished and Kenya became a republic with Kenyatta as President combining the functions of both Head of State and Head of the Executive. This dual role tended to enhance the President's position and authority *vis-à-vis* the other governing institutions, namely the Cabinet and the Parliament.

The executive powers in Kenya are vested not in the Cabinet but in the President who is the source of power and authority. The President appoints the Vice-President and the ministers, and may remove them from office at will.[27] In a public speech in March 1974 Kenyatta reminded ministers that he had nominated them and warned them that 'should any of them become disobedient I will kick them out'.[28] In the aftermath of Kariuki's murder he dismissed a Minister and two Assistant Ministers for being critical of the government's conduct in the affair.[29] According to the constitution the function of the Cabinet is to 'aid and advise' the President, but there is no provision compelling the President to act on its advice. In practice he has felt free to accept or reject his ministers' advice. Important decisions were made and important Bills were introduced in Parliament without prior consultation with the Cabinet. The President even takes personal decisions concerning the affairs of various ministries.[30] Thus the practice of collective decision-making by the Cabinet does not exist in Kenya. J. M. Kariuki, who had been an Assistant Minister himself, complained bitterly: 'I tell you, the country is not being run by the Cabinet. It is no use having Ministers who do not take decisions, who have no control over their ministries.'[31] In fact, the Cabinet meets very infrequently since the President spends so little time in Nairobi.

Policy-making and decision-making is the prerogative of the President who brings into the process a small group of advisers comprised of Ministers, high-ranking civil servants, relatives and friends, all members of the Kikuyu tribe. In the early 1970s the Attorney-General (Charles Njonjo), the Minister of State in the Office of the President (Mbiyu Koinange) and the then Foreign Minister (Dr Njeroge Mungai) were mentioned as belonging to the 'Inner Cabinet'.[32] This is not a formal body which meets regularly. It is rather an inner circle composed of trusted people who have access to the President. Already in 1968 it had been suggested that some of Kenyatta's closest advisers originate policy, often making decisions without consulting ministers or even Kenyatta.[33] This trend seems to have gathered momentum in the 1970s as a result of Kenyatta's gradual withdrawal from the active running of the country.

27. Y. P. Ghai and J. P. W. B. McAuslan, *Public Law and Political Change in Kenya*, Nairobi, 1970, pp. 223, 229.
28. *ARB*, April 1974, p. 3199.
29. *ARB*, June 1975, p. 3661.
30. Y. P. Ghai and McAuslan, *op. cit.*, pp. 234, 236.
31. *ACR*, 1975–6, p. B216.
32. *ACR*, 1972–1973, p. B151.
33. J. Murray, *op. cit.*, p. 46.

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Thus under Kenyatta influential people close to him have shared the Presidential prerogative through the informal process of decision-making and manipulation. Therefore, the presidency more that the personality of the President must be viewed as the basis for the centralization of executive power in Kenya.

The Cabinet is indeed rather useless as a decision-making body, but it serves the regime and enhances political stability in a different way. Ministerial appointments allow access to considerable material and political resources. These appointments enable the holders of power to satisfy aspiring politicians from the different ethnic groups. The resources controlled by Cabinet members are used by them to build networks of patron-client relationships which form the basis of their power. Thus Ministers and Assistant Ministers, who normally have influence among their fellow tribesmen, have vested interests in the regime on which they thrive. It is noteworthy that Kikuyu control the most important ministries.

The position of the President is paramount not only within the government but also in his relations with Parliament. Kenya's constitution does recognize theoretically the supremacy of Parliament, but in reality the Legislature hardly functions as a check on the Executive. Kenyatta himself has referred rather ambivalently to this principle: 'It must be the purpose of this Parliament to wield supreme power in a truly national spirit.'[34] The constitution itself accorded the President leverage in his relations with Parliament. Thus he possesses the powers to dissolve, summon and prorogue Parliament.[35] Referring to the accountability of the government to Parliament, Ghai and McAuslan said of the balance of the constitutional position: 'It has transformed a rule which gave the National Assembly an opportunity to call the government to account into one which enables the government to pick and choose what it will be responsible for, even to the extent of declining to be responsible for its actions.'[36]

The record of parliamentary debates may give a misleading impression as to this institution's effectiveness in the pursuit of its critical function. Within a conveniently undefined limit the government allows MPs a large measure of freedom to criticize it. The most severe outburst of criticism against the government followed the murder of J. M. Kariuki, who had himself been the most outspoken critic of the government. Speaking on a motion seeking to set up a select committee to investigate the circumstances of the murder, a Kikuyu MP claimed that the murder was part of a plot to eliminate all politicians who stood for truth and democracy. The chairman of the committee said, with a distinct sense of rage and exaltation: 'We want to establish the truth and publish it.' He added he would seek authority to question anyone 'even if it

34. C. Gertzel, M. Goldschmidt and D. Rothchild, *Government and Politics in Kenya*, Nairobi, 1969, p. 197.
35. Y. P. Ghai and McAuslan, *op. cit.*, pp. 236–237, 240.
36. *Ibid.*, p. 246.

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means getting court injunctions . . . we will do it Watergate style.'[37] The committee's report, which implicated people in the high echelons of the government and the bureaucracy, was a political bombshell, as was the debate on it in Parliament.[38] However, the government rejected parts of the report and did not take any action on it.

The government has a habit of ignoring Parliament and introducing retroactive legislation to legalize actions taken against the law.[39] In 1974 J. M. Kariuki complained bitterly against the exclusion of Odinga and other ex-KPU leaders from the forthcoming general elections, claiming that 'the statement remained illegal until such time as the government decides to bring it to Parliament in the form of a bill to be debated, approved or rejected by Parliament . . . .'[40] In this case the government did not even bother to introduce the appropriate legislation. In 1966 it did introduce a retroactive bill which forced MPs who had joined the newly formed KPU to resign from Parliament and contest their seats as KPU candidates.[41]

The executive's supremacy is also based on a measure of compliance among MPs who respond favourably to built-in incentives to cooperate with the government. Parliament is a vital stepping stone for aspiring politicians and those who get in do their utmost to secure their re-election. Since the constituents expect their MPs to channel national resources to their area, it is vital for them to ensure the cooperation of the government which controls these resources. The President is also in a position to promote an ambitious MP to an assistant ministerial post or even a ministerial post. While a certain amount of criticism may induce the President to buy an MP off, excessive criticism will lead such an MP nowhere. There are other benefits which may be accrued to a cooperative MP. It was discovered that about half of KANU backbenchers were likely to hold some extra-parliamentary government appointments at any given time.[42] MPs have shown a marked inclination to indulge in business where government assistance in credit, licences and in other matters is very helpful. A complaint was voiced against MPs who failed to attend parliamentary sessions because they had too many businesses.[43] The involvement of MPs in business became so extensive that the Attorney-General found it necessary to advise them: 'Leave these petty jobs to *wananchi* [citizens] who are not financially fit to run bigger businesses which you are able to do.'[44] Thus, many MPs have vested interests in the system on which they thrive, and they would normally be disinclined to antagonize the government.

For those who choose to ignore the carrot and prefer confrontation to

37. *ARB*, March 1975, pp. 3562–3563.
38. *ARB*, June 1975, pp. 3660–3661.
39. Y. P. Ghai and McAuslan, *op. cit.*, p. 351.
40. *ARB*, May 1974, p. 3228.
41. C. Gertzel, *op. cit.*, p. 78.
42. C. Leys, *op. cit.*, pp. 244–245.
43. *Sunday Nation*, Nairobi, 9.10.1977.
44. *Daily Nation* [DN], Nairobi, 30.9.1977.

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cooperation the government's stick steps in. The immunity of MPs is rather limited and they are exposed to the government's coercive measures. Recently the Attorney-General urged that 'a campaign should be started aimed at abolishing the Parliamentary Powers and Privileges Act because Members were abusing it.'[45] Referring to troublesome MPs who criticized the government in the aftermath of Kariuki's murder Kenyatta said: 'We shall have trampled the wreckers underfoot . . . we shall mow them like grass.'[46] Already in 1970 when Kariuki became an outspoken critic of the regime, his political and economic fortune began to decline rapidly.[47] After the 1974 elections one MP was murdered, three detained and three were imprisoned, all were vociferous critics of the government.[48] The impact of the selective use of coercion on MPs was revealed by Dr J. H. Okullu who wrote in June 1977 that 'every time someone is detained many of us feel intimidated and actually imprisoned in our mind.'[49] It is hardly surprising that the following report appeared in a local weekly: 'During their first week of business after five weeks' recess it was as if all parliamentarians had agreed to keep off any controversy and most importantly that there should be no criticism of the Government.'[50] Achieng Oneko, a veteran nationalist who had spent some seven years in detention, summed up the predicament of a radical politician in a very personal way: 'It does not pay to be bitter.'[51]

Referring to the Kariuki murder and its aftermath, a Kenyan political analyst summed up the true nature of the balance of power between the President and Parliament: 'The bitter truth for John Seroney and his supporters in Parliament is that Parliament may be the supreme body in the land, but the reality is something else altogether. The President, in the eyes of both politicians and public, wields a lot more power than Parliament. And a showdown between President and Parliament today would be won by the President hands down.'[52]

While the authority of Parliament *vis-à-vis* the executive has declined, its legislative powers have been extended. Since, however, the government's control over Parliament is firm, the net result of this has been to further enhance the power of the executive. Parliament, however, supports the regime in other ways. Functioning as a debating society which enjoys a large measure of freedom of speech Parliament is a political safety valve. It provides the framework within which the government can exert influence on leaders representing the population at large. It also functions as a line of communication transmitting the grievances and the wishes of the grass-roots.

45. *TS*, 7.5.1977.
46. *ARB*, June 1975, p. 3652.
47. *ACR*, 1970–1971, p. B128.
48. *ARB*, March 1975, p. 3563, April 1976, p. 3964; *ACR*, 1975–1976, p. B219; *Africa* (London), **71**, July 1977, p. 25.
49. *TWR*, 6.6.1977, p. 2.
50. *TWR*, 27.6.1977, p. 11; see also *TWR*, 26.12.1977, p. 8.
51. *NAD*, March 1977, p. 212.
52. *ACR*, 1975–1976, p. B220.

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With a politically weak Parliament the executive, and more precisely the President and the inner circle have a large measure of freedom of action. But how do the holders of power make their writ run throughout the country? Indeed, the most outstanding and characteristic feature of the Kenyan regime is its choice of the agency for control and social and political mobilization. The choice which the government of independent Kenya had to make was basically between the existing state apparatus and KANU, the nationalist party which represented the majority of Kenyans. Kenyatta chose wholeheartedly and without any reservation the colonial civil service, and the provincial administration in particular, to the utter neglect of the party.

It has been suggested that the choice was largely dictated by Kenya's colonial legacy, namely a weak and fragmented national movement and a strong, efficient and apolitical administration.[53] It is implied, therefore, that Kenyatta preferred the agency which would offer him a more effective, professional and loyal power structure and enable him to enhance his position as the head of the executive. This interpretation, though not completely without basis, does not tell the whole story. As we have seen earlier, Kenyatta's experience with the nationalist parties certainly did not encourage him to turn KANU into the backbone of his regime. But Kenyatta's adoption of the loyalist colonial administration was also a direct outcome of his choice of an economic and development strategy for independent Kenya. This strategy, derogatorily termed 'neo-colonialist', was aimed at using the existing colonial-settler economic infrastructure as a springboard for the economic development of Kenya. Soon after he had come out of detention in 1961 Kenyatta began his attempts to ensure continuity and stability in the transition to independence and to convince the frightened white settlers not to leave Kenya with their capital and skills. And what could allay the worst fears of the settlers more than the emasculation of the potentially radical ruling party and the adoption of the colonial administration with its loyal and trustworthy African personnel. In addition, a highly centralized administration could also be conceived as the best agency for nation-building in a country where ethnicity was a formidable political factor.

Kenyatta made his choice and has since ruled Kenya mainly through the provincial administration which he had inherited intact from the colonial government. The hierarchy of Provincial Commissioners (PC), District Commissioners (DC) and Chiefs penetrates all corners of the country. This hierarchy is controlled and supervised by the Permanent Secretary of the Office of the President, who is also the Head of the Administration. By virtue of his dual position he is one of the most influential and powerful persons in Kenya. Particularly powerful in the provincial administration are the eight PCs who

53. H. Bienen, *Kenya, The Politics of Participation and Control*, Princeton, 1974, pp. 77, 80; K. Good, 'Kenyatta and the Organization of KANU', *Canadian Journal of African Studies*, Vol. 11, No. 2 (1968), p. 132.
54. H. Bienen, *op. cit.*, pp. 37–38.

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represent the authority of the President and wield tremendous influence and power. One scholar has termed them 'mini dictators'.[54] PCs and DCs, responsible for law and order, play a decisive role in controlling the population on behalf of the President. They also manipulate KANU branches and indulge in local politics against incumbent MPs.[55] Odinga complained that 'the administration merely hand picked a few individuals and imposed them as party leaders in Siaya.'[56] Kenyatta himself legitimized the involvement of civil servants in party politics, saying that 'civil servants are not impartial. They are KANU civil servants.'[57] He referred then to the provincial administration's anti-KPU activity.[58] The provincial administration mobilizes support for the regime, with PCs often leading delegations professing loyalty to the President. The provincial administration is deeply involved in development projects, co-ordinating the activities of the various ministries in the areas. PCs and DCs chair land boards, loan boards, agricultural committees and self-help committees in their respective provinces and districts. Since they are so deeply involved in the vital aspects of the citizens' existence, they also function as a line of communication between the people and the central government.

The civil service and the provincial administration in particular are loyal to the regime. The Kikuyu figure prominently, giving the civil service sound ethnic support. In 1970 Kikuyu occupied nine of the twenty-two permanent secretaryships, four of the then seven PCs also being of the same tribe.[59] G. Kariithi, the head of the provincial administration, is also Kikuyu.

In addition to ethnic support, civil servants and those in the high echelons in particular have considerable vested interests in the regime. The Ndegwa Commission, which allowed civil servants to indulge in business, did not even address itself to the sore question of conflicting interests. George Githii, a leading journalist, gave an insight into the extent of civil servants' involvement in business: 'I know some civil servants, very senior and respected . . . who in addition to barber shops and shoe-shine business also want to own tea kiosks in the streets. The very same civil servants want to own farms, some of them cultivate barley in Narok and sell it to the Breweries here. Some of them want to own shares in factories and want to run factories. And also they want shops in River Road too, and some of them . . . want to trade in gems, the precious stones! All at the same time.'[60] Thus, since they are so powerful and loyal and derive such benefits from their privileged position, the civil service, and the provincial administration in particular, is the backbone of the regime.

Political parties, on the other hand, have been regarded as potentially

55. *DN*, 8.7.1977.
56. *TWR*, 7.3.1977, p. 4.
57. J. Murray, *op. cit.*, p. 45.
58. G. Hyden and C. Leys, 'Elections and Politics in Single-Party Systems: The Case of Kenya and Tanzania', *British Journal of Political Science*, 2, No. 4, 1972, p. 394.
59. S. Meisler, 'Tribal Politics Harass Kenya', *Foreign Affairs*, 49, 1 (October 1970), p. 116.
60. *TWR*, 28.6.1976, p. 3.

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competing power bases whose challenge to the holders of power had to be met. KADU, the opposition party which had survived independence, went into voluntary liquidation in late 1964, its leaders having been absorbed into KANU and the government.[61] The KPU, which existed between 1966 and 1969 and offered radical alternatives to the government's policies, was constantly harassed by the administration until it was finally banned in 1969 and its leaders detained.[62] KANU, the ruling party, was also looked upon with suspicion. In fact, the radical wing of the party was regarded as a major threat to the regime. Thus, in 1965 Kenyatta intervened personally to prevent an attempt to turn the KANU backbenchers into an active radical pressure group in Parliament.[63] The KPU came into being after KANU radicals had found their position in the party untenable. At the Limuru Conference in 1966 they were manoeuvred out of the party.

KANU, which remained the only party in Kenya after the banning of the KPU, has not been allowed to develop as a strong, effective ruling mass party. It has led a rather miserable existence as revealed by KANU's National Executive Officer in 1971. He disclosed that KANU branches and sub-branches were not functioning and that the party had no impact in the country: 'As things stand in Kenya today administrative officers . . . have assumed the role of party officials. This more than anything has weakened the party. Civil servants have interfered so much with the party work that the party officials in the districts are left wondering whether the Kenya government is a political one or not.'[64] There have been the occasional ritual calls for the revitalization of the party without anything having been done. In 1970 a KANU reorganization committee was set up, whose report, which proposed to turn the party into an effective policy-making body, was approved in 1971 by the party's annual delegate's conference but was not implemented.[65]

An emasculated KANU has not posed a threat to the holders of power, but in fact has served the regime in some positive ways. Bienen suggests that 'Kenyatta's major use of KANU has been as an arena in which to let others struggle for control of subsidiary resources.'[66] In fact, more important roles have been assigned to the party. The weak and emasculated party has been turned into a useful agent for the consolidation of the regime. KANU serves Kenyatta and the ruling elite as a source of ideological legitimacy. In 1974, when there were growing signs of discontent and opposition to the government, Kenya stated explicitly: 'KANU is the father and mother of the Government. The Government I lead is a KANU offspring. I insist on unswerving respect

61. C. Leys, *op. cit.*, p. 213.
62. C. Leys, *Ibid.*, pp. 220–238.
63. K. Good, *op. cit.*, p. 124.
64. *ACR*, 1971–1972, p. B130.
65. *Ibid.*
66. H. Bienen, *op. cit.*, p. 81.

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for the party for without the party there would be no Government.'[67] As such KANU serves as a useful disciplinary agency to deal with political dissidents with very little apparent coercion. Since the banning of the KPU in 1969 all candidates for Parliament and municipal bodies have had to be candidates of KANU, the only existing party.[68] This ruling gives those who control the party a considerable scope for manipulation. In 1975, when after Kariuki's murder many MPs and even Ministers openly criticized the government, party discipline was tightened. A meeting of KANU branch chairmen resolved in September 1975 that MPs who deviate from KANU policy (namely, government policy) would have to resign from Parliament.[69] Already in June 1975 Kenyatta had called for the immediate resignation of MPs who did not submit to KANU's discipline.[70] In early 1977 the Nandi branch of the party was used to legitimize government action against John Seroney, the local MP who had been an outspoken critic of the government.[71] The party was also used to prevent Odinga and other former KPU leaders from recapturing their place in national politics.[72] In 1975 and 1977 the party was employed to ensure that the political leadership would be monopolized by the desirable social stratum. It was decided that only KANU life members who payed a high membership fee would be eligible for branch and national party posts.[73] But most crucial of all was the 1968 constitutional amendment which stipulated that the candidates for the presidency must be put forward by recognized parties.[74] This stipulation may give those who control KANU a tremendous advantage in the regulation of the prospective succession. Only thus can we understand the fierceness of the struggle between the two groups which contested the 1977 elections for the KANU conference. It is most instructive that the group of the incumbents which had the upper hand represented the Moi-Njonjo alignment which seems to have an overall advantage in the unofficial struggle for Kenyatta's succession.

The trade union movement in another potential power base which has been neutralized by the holders of power in Kenya. In a developing country not over endowed with organizational structures and leadership cadres, trade unions could indeed become formidable power bases. In addition, trade unions deal with the most vital existential interests of the country's labour force. The combination of organizational structure, leadership and vital interests could turn the trade union movement into a highly effective agency for political mobilization. During the 1950s Tom Mboya made use of his position in the trade union movement to promote his political career. Kenyatta himself encountered the

67. *ACR*, 1974–1975, p. B199.
68. *ARB*, April 1966, p. 512; August 1974, p. 3333.
69. *ACR*, 1975–1976, p. B221.
70. *ARB*, June 1975, p. 3652.
71. *NAD*, March 1977, p. 211.
72. *TWR*, 7.3.1977, p. 10; *ARB*, August 1974, p. 3333; December 1976, p. 4254.
73. *ACR*, 1975–1976, p. B221; *TWR*, 21.3.1977, p. 6.
74. C. Gertzel, M. Goldschmidt and D. Rothchild, *op. cit.*, p. 227.

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danger involved in the trade union movement's meddling in politics in the early 1960s when Mboya used it in the factional struggle within KANU. In 1962 Mboya threatened to leave KANU and use the Kenya Federation of Labour as the organizational basis for a new party.[75]

In an independent Kenya whose economic strategy favoured capital rather than labour, the trade union movement could become a focus for radical opposition to the government. Until 1965 Kenyatta made efforts to undermine Mboya's position in the Kenya Federation of Labour by supporting a more radical rival trade union organization, sponsored by Mboya's rival Odinga.[76] In 1965 Kenyatta switched his alliance after realizing the danger involved in the cooperation between the radicals within KANU and the radical trade union leaders. In order to neutralize the radicals' influence in the trade union movement, the government forced, in September 1965, an amalgamation of the rival trade union organizations within the newly formed central organisation of Trade Unions (COTU).[77] After the formation of the KPU the radical trade union leaders who supported Odinga were suspended from COTU. When they threatened to establish a rival organization, the Labour Minister warned that their organization would not be registered.[78] The Minister also stressed that no one could remain in COTU and at the same time attack the government that sponsored its establishment.[79] In August 1966 the four leading trade unionists who supported the KPU were detained.[80] Following the 1966 'Little General Elections' when the true proportion of the KPU threat was revealed, the Kikuyu group around Kenyatta (C. Njonjo, N. Mungai, M. Koinange) reverted to undermining Mboya's influence in the trade union movement. In 1969 they brought down C. Lumembe, COTU's secretary-general, who was Mboya's protegé, and secured the election of D. Akumu, the ex-KPU leader in his stead. When after Mboya's murder Akumu proved too ambitious the Kikuyu began to undermine his position too.[81] Akumu resigned in 1974 and his post was taken over by Juma Boy from the Coast. A more recent row within COTU's leadership, ostensibly about the recruitment of Kenyan workers for work in Saudi Arabia, seems to be linked to political rivalry between leaders and may very well reflect the struggle between the 'incumbents' and the 'challengers' who had fought the 1977 KANU elections.[82]

Thus, the trade union movement did not offer a very secure political base which could be used against the government. Besides the positive action taken by the ruling clique, the loose organization of the trade union movement, the

75. R. Sandbrook, 'Patrons, Clients, and Unions: The Labour Movement and Political Conflict in Kenya', *Journal of Commonwealth Political Studies*, 9 (March 1972), pp. 9—10.
76. *Ibid.*, pp. 16–18.
77. *Ibid.*, p. 20; K. Good, *op. cit.*, p. 127.
78. R. Sandbrook, *Ibid.*, p. 21.
79. K. Good, *Ibid.*, p. 127.
80. R. Sandbrook, *Ibid.*, p. 21.
81. *Ibid.*, p. 24.
82. *TWR*, 14.11.1977, p. 47.

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pattern of patron-client relations linking trade union leaders to a diffused political leadership at the centre, and tribal rivalries contributed to the fragmentation and emasculation of the trade union movement. The government has always been strong enough to impose its will on the unions. It certainly did not allow the trade unions as such to meddle in politics. When in April 1975 COTU wanted to stage a peaceful demonstration in protest against the murder of Kariuki it was refused a permit on the grounds that the murder was not an industrial matter.[83] But even in purely industrial matters trade unions have not been free agents. Since independence the government has, by formal and informal means, strengthened its control over the unions and restricted their industrial activity, limiting in particular their right to strike. In August 1974 a Presidential directive banned all strikes.[84] In May 1975 COTU withdrew its threat to stage a general strike after having been warned by Kenyatta that it was illegal.[85]

Thus, the regime's stability in Kenya rests on the concentration of power in the hands of the President and the inner circle who control the state's power structure and neutralize potential alternative foci of opposition. However, the nature of Kenya's political stability cannot be fully understood without a proper appreciation of the socio-economic context in which it has flourished.

The regime is supported foremostly by those intimately involved in its running, who are termed by Mutiso the political petit bourgeoisie. This political petit bourgeoisie is a result of the original amalgamation at independence of the associative *asomi* and dissociative *asomi* of the colonial period, namely the loyalists who formed part of the colonial administration and the nationalist politicians who inherited the colonial power structure.[86] Indeed, this alliance between the former enemies is one of the main features of Kenyan politics since independence. The bureaucracy has considerably expanded and has been africanized, and the ranks of the politicians have swelled both in Parliament and the various party echelons. There is often tension between bureaucrats and politicians, but both groups share a basic interest in the perpetuation of the system on which they thrive.

Another pillar of the regime is the group of African capitalists involved in trade, transport, farming and other branches of the economic spectrum, who owe their wealth to government assistance and protection.[87] There are many other Africans, in business or in farming, who are doing well for themselves but could not qualify as capitalists. Kenya's real capitalists are mostly expatriates. However, due to the relative prosperity which they generate, an African middle class thrives. A host of executive and managerial positions is also offered to privileged Africans.

83. *ARB*, April 1975, p. 3598.
84. *ACR*, 1974–1975, p. B206.
85. *ACR*, 1975–1976, p. B224.
86. G. C. Mutiso, *Kenya—Politics, Policy and Society*, Nairobi, 1975, p. 83.
87. C. Leys, *op. cit.*, pp. 148–169.

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The government's economic policy has consciously encouraged the growth of an African middle and upper class which benefits from this system and provides the government with a relatively wide and solid social basis. This is reminiscent of the colonial government's policy in the 1950s of encouraging the emergence of an African middle class which would form the social basis for the multi-racial policies designed for pluralistic British colonies.[88] The ideology or ethic behind this policy was implicit in Kenyatta's attack on B. Kaggia in 1968: 'But we were together with Paul Ngei in jail. If you go to Ngei's home, he has planted a lot of coffee and other crops—what have you done for yourself? If you go to Kubai's house, he has a big house and a nice shamba—Kaggia what have you done for yourself? We were together with Kungu Karumba in jail; now he is running his own buses—what have you done for yourself?'[89] Very recently the Finance Minister Kibaki said that 'Kenya will not pursue a policy of social justice at the expense of individual freedom', namely the freedom to get rich. Not surprisingly, he equated the equality guaranteed by the constitution to all Kenyan citizens with equality of opportunity rather than with equality of income.[90] This is the Kenyan brand of 'African socialism'.

J. M. Kariuki who knew the system from within spoke critically of the coalition of the regime's supporters: 'A small but powerful group, a greedy self-seeking elite in the form of politicians, civil servants and businessmen, has steadily but very surely monopolized the fruits of independence to the exclusion of the majority of the people.'[91] Less critical members of the elite would prefer to present themselves as the avant-garde of development and progress of the country and the population as a whole. An impartial commentator linked this social basis to the question of political stability in Kenya: 'The growth of an entrepreneurial and professional elite linking politicians, civil servants, businessmen, the military, large-scale farmers and professional people provided a measure of cohesion and hope for continuity.'[92]

Bienen argues that 'Kenya remains stable because classes have not formed in any clear fashion and that class politics does not exist in the country.'[93] I would argue rather that Kenya politics is basically class politics, the elite using their political control to perpetuate their control over the country's political and economic resources. The regulation that only life members could qualify as candidates for KANU positions is one means by which the elite monopolizes the access to power. A man without substantial wealth would find it very difficult to contest successfully a parliamentary seat. Furthermore, contrary to Bienen's suggestion, there are increasing indications that members of the elite have been able to transcend ethnic differences and rivalries in various economic

88. M. P. K. Sorreson, *Land Reform in Kikuyu Country*, London, 1967, p. 118.
89. K. Good, *op. cit.*, p. 133.
90. *The Nairobi Times*, 4.12.1977.
91. *ARB*, March 1975, p. 3562.
92. *ACR*, 1972–1973, p. B150.
93. H. Bienen, *op. cit.*, pp. 22–23.

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fields,[94] and more importantly in politics. Indeed, the impact of the consolidation of the middle- and upper-class African elite on the sore problem of 'tribalism' seems to be very significant.

Mutiso warned that the political reality in Kenya may lead to a situation in which 'the tribe will be consolidated politically perhaps more than it has ever been'.[95] If this was the case, then tribalism could become a serious threat to Kenya's political stability. Mutiso may have been influenced by the hardening of tribal attitudes in the late 1960s and early 1970s, especially between the Kikuyu and the Luo following the murder of Mboya, the banning of the KPU and the detention of its Luo leaders. But in fact, looking back from 1977 it can be argued that the outburst of 'tribalism' around 1970 masked the real trend, namely the decline of the tribe as an effective mobilizing agency in the internal political struggle in Kenya.

The heyday of 'tribalism' in Kenya politics was on the eve of independence in the early 1960s when political alignments were tribally based. KANU was basically an alignment of the Kikuyu, Luo and the Kamba, whereas KADU was a coalition of the pastoral tribes of the Rift Valley and the coastal tribes. Odinga was then the undisputed leader of the Luo, Ngei enjoying a similar position among the Kamba. Ngei could boast that he had the Kamba electorate behind him, which he proved at the 1963 general elections after he had left KANU to form his own party.[96] Ethnic associations at the tribal level operated openly as political mobilizing agencies.[97] There is no doubt that the fierce struggle between KANU and KADU encouraged this trend. The multi-party system when it exists in Africa often tends to breed the phenomenon of one-party tribes. Indeed, after independence the KPU, which was in existence between 1966 and 1969, was essentially a Luo party.

However, since 1969 Kenya has been a *de facto* one-party state, and a new situation seems to have emerged. Odinga faces great difficulties in recapturing his former position among the Luo,[98] and Ngei can no longer claim influence over all Kambaland.[99] The extent of the political fragmentation of the tribes was clearly revealed in the recent intra-elite struggle between the 'incumbents' and the 'challengers' in the 1977 KANU elections. The alliances cut right through most of the tribes. The Kikuyu C. Njonjo and N. Mungai were the leading figures in the 'incumbent' and 'challenger' camp respectively. The Kikuyu M. Kibaki and J. Gichuru contested the party chairmanship. D. arap Moi, the 'incumbents' candidate for vice-president, was to be opposed by

94. C. Leys, *op. cit.*, pp. 176–177.
95. G. C. Mutiso, *op. cit.*, p. 246.
96. Mutiso, *Ibid.*, p. 243; J. Nottingham and C. Sanger, 'The Kenya General Election of 1963', *The Journal of Modern African Studies*, 2 (March 1964), pp. 5, 34–35.
97. M. Tamarkin, 'Tribal Associations, Tribal Solidarity and Tribal Chauvinism in a Kenya Town', *Journal of African History*, XIV, 2 (1973), p. 272.
98. *TWR*, 21.3.1977, p. 2; *TS*, 17.1.1977, 26.4.1977.
99. *TWR*, 17.1.1977, p. 7.

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T. arap Towett, a fellow Kalenjin. As leading personalities in both camps we find the Kamba N. Mwendwa and P. Ngei, the Masai J. Keen and J. Ole Tipis, the Abaluhya M. Muliro and N. Munoko, the Luo Grace Onyango and Onyango Ayoki and from the Coast Matano and Mboja.[100]

Intra-tribal political divisions are not confined to the central political arena. Kenya politics is characterized by weak voluntary political organizations and highly developed patron-client relationships. Patron-client networks function vertically, the divisions at the centre being transmitted to all levels of political activity. The fact that the parliamentary constituency is the main stepping stone for aspiring politicians also tends to dilute tribal solidarity and weaken the tribe as a relevant political factor, especially in a one-party system. In the context of the rural constituency the tribe is irrelevant, the clan being the main mobilizing agency.[101] The strengthening of clan solidarity which ensues is reflected in the weakening of tribal solidarity. In the context of economic development Paul Ngei condemned 'clanism' and petty politics.[102]

I do not wish to claim that ethnic solidarity (or 'tribalism') has ceased to exist in Kenya.[103] Ethnic solidarity still forms a basis for social interaction and mutual trust. But Kenyan tribes as known today (Luo, Kikuyu, Kalenjin, etc.) have never been centralized or homogeneous entities. In fact some, like the Kalenjin, are recent and rather artificial creations. The tension between tribal solidarity and loyalty to the more immediate social unit like the sub-tribe or the clan was an inherent part of tribal reality in colonial Kenya. My argument is that the political reality in independent Kenya (and especially during the 1970s) has tended to weaken the tribe as a basis for political opposition.

Thus the middle and upper class elite forms a relatively solid social base for the regime. It is not argued that this elite is homogeneous and free of internal stresses. Nyeri people may resent the preponderance of their Kikuyu brethren from Kiambu, and elite members from other tribes certainly think that the Kikuyu as a whole get more than their fair share of the country's prosperity. But these stresses apart, members of the elite share a common interest and a common goal in defending their privileged position *vis-à-vis* the rest of the population.

It is to the rest of the population in the countryside and the towns that we have to turn for a major potential source of instability. The vast majority of the more than twelve million Kenyans live in rural areas where the already strong pressure on the land is steadily made worse by a very fast growth rate of population. The majority of Kenyan peasants live in a state of poverty.[104]

100. *TS*, 31.3.1977, 2.4.1977.
101. G. Hyden and C. Leys, *op. cit.*, pp. 401, 403–404; *ACR*, 1974–1975, p. B200; *TWR*, 7.3.1977, p. 12.
102. *DN*, 10.10.1977.
103. See P. H. Gulliver, ed, *Tradition and Transition in East Africa* (London 1969), *passim*.
104. L. D. Smith, 'An Overview of Agricultural Development Policy', in J. Heyer, J. K. Maitha and W. M. Senga (eds.) *Agricultural Development in Kenya*, Nairobi, 1976, p. 144.

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The pressure on land and the resulting rural poverty increases the influx of people to the overcrowded towns and especially to Nairobi. Social problems in the towns are more acute than in the countryside. Unemployment is constantly on the increase, and many of the unemployed join the ranks of those operating in the 'informal sector' on the fringes of the country's economy.[105] The life of the urban poor is made worse by appalling housing conditions and poor urban services. The misery of the poor in Kenya is highlighted by the extravagance of the African *nouveau riche*. The growing gap between the rich and the poor is a source of increasing social discontent.

What is the effect of this social discontent, existing and potential, on the prospects for political stability in Kenya? J. M. Kariuki was very explicit on this point: 'In years to come we are in danger of having a class of the very rich and a class of the very poor. That is what I can see coming as a result of the present system. If that situation continues there is going to be an uprising.'[106] Referring to the alarming unemployment situation, another MP recently implied the same when he said: 'We do not want any revolution in Kenya. We are creating two classes, the employed and the unemployed.'[107] Evans in his article on the growing body of unemployed school-leavers concludes that they 'are being inexorably drawn toward points of social and political rebellion.'[108]

While accepting that the socio-economic position of the Kenyan masses is desperate and that the sources of discontent lie there, the view that this will inevitably lead to a revolution is rather simplistic. It gives undue weight to socio-economic conditions and underestimates the ability of the regime to cope politically with social and economic discontent. First of all, there is no direct correlation in comparative history between deprivation of the masses and revolutions. Class consciousness and solidarity, leadership and effective organization are essential prerequisites in transforming social indignation into a revolution. The rural masses who form the bulk of the under-privileged class have certainly not arrived at the stage at which they can organize nationally for effecting a revolution. The loyalty of the majority of the rural population centres most probably still around their immediate kinship groups. The vertical patron-client networks which are spread throughout the country also inhibit the development of horizontal class loyalties and bring the rural masses under the influence of the ruling elite through local 'big men'. In the towns, the trade unions could provide the masses with organization, leadership and perhaps class consciousness too and become the *avant-garde* of a prospective

105. C. Leys, *op. cit.*, p. 178; H. H. Werlin, 'The Informal Sector: The Implications of the ILO Study of Kenya', *African Studies Review*, Brandeis University, XVII, 1, (April 1974), pp. 205–211; E. B. Evans, 'Sources of Socio-Political Instability in an African State: The Case of Kenya's Educated Unemployed', *African Studies Review*, Brandeis University, XX, No. 1, April 1977, pp. 37–54.
106. *ACR*, 1975–1976, p. B216.
107. *DN*, 28.7.1977.
108. E. B. Evans, *op. cit.*, p. 37.

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revolution. To the extent that trade unions are effective they concentrate their efforts on enlarging their members' share in the national cake rather than on undermining the regime or pressurizing the government into solving the more acute problems of their less fortunate brethren. Their leaders regard themselves as custodians of the interests of the relatively privileged followers rather than as the *avant-garde* of a social revolution. Among the urban masses social interaction is still largely based on ethnic solidarity.[109] In the towns, unlike the rural areas, tribal solidarity or 'tribalism' is also an important political factor.[110] Ethnic divisions and the feeling of political powerlessness which is most common among the lower classes in the towns[111] present major obstacles in the way of organizing the masses for direct anti-regime political action.

The government for its part has taken great care to prevent the consolidation of organizations and leaderships which could articulate the grievances of the masses and channel their growing discontents into the political arena. Its policy towards the trade unions was motivated by this concern. The KPU was put under increasing pressure, and was eventually banned, primarily because it had appealed to the masses across tribal lines and offered them the leadership, the organization and an articulated social and economic alternative. This, the elite-oriented regime could not tolerate. J. M. Kariuki was removed because he placed his charismatic leadership at the service of the masses and became the most outstanding critic of the regime and chief articulator of the underprivileged discontent. When in addition he turned into a rallying focus for radical and disgruntled elements in the elite he became an intolerable threat to the holders of power. The government's harsh treatment of the militant students was also motivated by such considerations.[112]

Perhaps one of Kenyatta's most important contributions to the stability of the regime was the political neutralization of the militant Kikuyu masses on the eve and in the aftermath of independence. Indeed, the Kikuyu masses were the only ones in Kenya who had been highly politicized during the colonial era. They developed a highly radical and militant anti-colonial outlook and evolved their own largely illiterate leaders. Mau Mau was a rebellion of the Kikuyu masses organized by the Kikuyu masses. These militants organized themselves in the early 1960s in the Kenya Land Freedom Army and joined the internal political struggle to ensure that those who fought and made great sacrifices for *Uhuru* would benefit from its fruits. They were greatly dismayed at Kenyatta's appeasement of the European settlers and at the emergence of a 'neo-colonialist' Kenya, largely dominated by ex-loyalists which condemned them to poverty and misery.[113] It was only Kenyatta, as a charismatic Kikuyu leader idolized

109. M. H. Ross, *Grass Roots in an African City: Political Behaviour in Nairobi*, The MIT Press, 1975, p. 71.
110. G. Hyden and C. Leys, *op. cit.*, p. 401; M. H. Ross, *op. cit.*, pp. 84–87.
111. M. H. Ross, *Ibid.*, p. 93.
112. *ARB*, April 1975, p. 3598, May 1975, p. 3628.
113. R. Buijtenhuijs, *Mau Mau Twenty Years After*, The Hague, 1973, pp. 49–62.

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by the militants, who could contain them and avert the danger of a Kikuyu class struggle at a time when the regime had not yet consolidated its ruling and coercive machinery. Many of the ex-freedom fighters are still bitter but it is doubtful whether they could now make a considerable political impact by returning to the political arena.

Thus the Kenya masses seem quite powerless politically *vis-à-vis* the powerful regime. However, with a view to the future, an assessment of the prospects for political stability in Kenya cannot be concluded without taking into account a few additional considerations. Two of these relate directly to the nature of the regime, namely the sensitivity and responsiveness of the ruling elite to the problems and aspirations of the masses and the potential coercion which the regime could employ in the face of prospective growing social discontent and social unrest.

Evans argues, rather simplistically, that there is 'an inherent long-term instability of Kenyatta's regime in terms of the regime's failure to adapt to the aspirations and demands of significant portions of Kenya's newly independent citizenry.'[114] I do not argue that the Kenya government has evolved a strategy which could radically solve the enormous social and economic problems with which it is faced. Indeed, I doubt that anyone could come out with such a strategy for Kenya or for any other African country for that matter. The government undoubtedly principally promotes the interests of the middle and upper class which supports it. But there are indications that the government and the elite are also sensitive and responsive to the problems, the needs and the aspirations of less fortunate citizens. First of all the grievances and demands of the latter *do* filter up through the administrative hierarchy, through MPs and through the various networks of patron-client relationships. The various schemes for settling landless Africans *are* very impressive. By the early 1970s some 500,000 people had been resettled on 1¼ million acres.[115] In its development programmes the government pays special attention to rural development.[116] By responding to workers' reasonable demands for rises in their salaries, by extending social services to most corners of the country and in other ways the government has clearly proved its sensitivity to the needs of the masses.[117]

MPs are regarded by constituents as their agents whose main task is to channel national resources to their respective constituencies. If they fail to fulfil the constituents' expectations, they will face the consequences in the next parliamentary elections.[118] Parliament's records are full of representations by MPs of problems affecting their constituencies.[119] Answering criticism that he

114. E. B. Evans, *op. cit.*, p. 37.
115. C. Leys, *op. cit.*, pp. 73–75.
116. *ACR*, 1973–1974, p. B192.
117. *U.S. News and World Report*, 2.8.1976.
118. G. Hyden and C. Leys, *Ibid.*, p. 401.
119. See for example *DN*, 23.6.1977, 24.9.1977.

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was too much involved in high politics to the neglect of the development needs of his home area, George Anyona, the then MP for Kitutu East, gave an impressive account of his contribution to the progress of his constituency.[120] The *Harambee* [self-help] projects are an institutionalized way of 'taxing' the rich for the benefit of the masses. In a fund raising meeting for a school in Nyeri Njenga Karume, the chairman of GEMA, and 'friends' donated Shs. 196,672.[121] In Meru the Minister for Land and Settlement contributed Shs. 59,000 for a *Harambee* project.[122] Daniel arap Moi, the Vice-President, donated Shs. 220,000 for various projects in his constituency.[123] Kenyatta himself donated Shs. 100,000 for the building of a *Harambee* school in the Coast.[124] The managing director of Kenya Post and Telecommunications and 'friends' donated Shs. 12,490 for the completion of a church and a social hall.[125] These are but very few examples of what has become a national pastime in Kenya.

The patron-client relationships which are at the basis of Kenyan politics constitute essentially an exchange of material benefits for political influence and loyalty. Elections, in particular, have evolved as a mechanism of redistribution of wealth accumulated at the top. Much of it probably circulates within the elite but there is no doubt that at least some of it benefits the masses. Thus, the winner of the Ndhiwa by-election in 1977 'has poured a lot of his money into self-help projects—schools, health clinics and water schemes' in his election campaign.[126] Shariff Nassir told newsmen that he spent some £K 750,000 in the Mombasa KANU branch election campaign in early 1977.[127] A research report from a constituency in Western Kenya claims that 'the people had long discovered the way to take advantage of candidates in any election and that was to receive the candidate with enthusiasm in order to exploit the candidate financially'.[128] Indeed this redistribution system received the recognition and blessing of the Attorney-General who advised *wananchi* to take the candidates' money and to vote for the one of their liking. It would be obviously unrealistic to suggest that this informal system of redistribution fully satisfies the needs or fulfils the expectations of the underprivileged masses. However, it indicates that the ruling elite is basically responsive to the masses' plight. Also, given this basic responsiveness, one could plausibly argue that in the face of increasing pressure from the masses and in view of its own enlightened self-interest this elite might come out eventually with more radical solutions than is presently expected of it.

120. *TWR*, 7.3.1977, p. 3.
121. *TS*, 20.6.1977.
122. *DN*, 13.9.1977.
123. *DN*, 19.9.1977.
124. *DN*, 24.9.1977.
125. *TS*, 10.10.1977.
126. *TWR*, 7.3.1977, p. 12.
127. *NAD*, June 1977, p. 486; see also *DN*, 14.7.1977.
128. G. Hyden and C. Leys, *op. cit.*, p. 402.
129. *DN*, 22.12.1977.

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Present and prospective levels of discontent may produce an increase in the levels of crime, particularly in the towns. Indeed, crime in Nairobi has already reached disturbing proportions.[129] If the situation gets worse we can expect spontaneous riots over issues like rises in the prices of food, deterioration in housing conditions and urban services and the like. We can even expect the recurrence of clandestine terrorist activity by selective and ideologically motivated groups like the Poor Peoples' Liberation Movement, which appeared and disappeared in early 1975.[130] There is little doubt that the regime can cope effectively with such protest manifestations. Until now the regime has used its coercive power very selectively and in a way which enables it to maintain Kenya's image as a relatively open and free society.

The succession, especially in Third World countries, is the ultimate test of a regime's political stability. The succession prospect in Kenya is of particular interest because of Kenyatta's dominant position and the absence of an accepted heir. Linking the 'increasing sharp social and economic contradictions' to the succession problem, Colin Leys says: 'It was, in fact, obvious to everyone that when Kenyatta, then in his seventies [in 1971] left the political scene, the problem of succession which is inherent in bonapartism would reveal these contradictions again. The balance of forces within the ruling alliance, which reflected Kenyatta's special position in the country, would be upset, and in the ensuing struggle for power, class forces which had been repressed would quite likely be released.'[131] Leys, on the basis of his 'bonapartist' interpretation which emphasizes Kenyatta's dominant and effective leadership and the relative weakness of the state structures and the bureaucracy, assumes that Kenyatta's disappearance will inevitably create a vacuum of power in Kenya. On the basis of my analysis this certainly does not seem to be the case.

The state apparatus in Kenya is elaborate, strong and resilient. It would be surprising if the highly-placed politicians and bureaucrats who control the power structure and are largely responsible for the day-to-day running of the country, and who, as representatives of the elite, have such a considerable interest in the regime, have not made contingency plans to ensure its perpetuation. It would also be very unlike the Kikuyu, who play such a prominent role in the high echelons of power in Kenya and who are so renowned for their sense of power and politics. Referring to the 1976–7 KANU elections which were seen as a prelude to the succession struggle, Odinga implied that such plans may exist: 'Rather, the *administration* merely handpicked a few individuals and impose them as party leaders in Siaya with the ocurrence of the *small clique of politicians* who are out to frustrate democracy in Kenya.'[132]

The struggle for the succession is essentially an intra-elite struggle fought by two groups whose aim is to control the regime rather than to subvert it. Political

130. E. B. Evans, *op. cit.*, p. 48.
131. C. Leys, *op. cit.*, p. 274.
132. *TWR*, 7.3.1977, p. 11. The emphasis is mine.

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stability is an interest of the elite as a whole because it is the basis of the economic prosperity of Kenya from which they all derive obvious material benefit, and because the regime is the basis of their social and political positions. The 'incumbents' group, also known as the Moi-Njonjo group, looked stronger than the 'challengers' group, which centred around the ambitious Dr Njeroge Mungai in early 1978. It seemed to have had the upper hand in the party branch elections and it had, as implied by Odinga, the support of at least the powerful provincial administration. The postponement of the party conference, due to be held at the beginning of April 1977, delayed the final day of reckoning between these groups, because the control of the party which was at stake would have given the winning group a decisive say in the selection of Kenyatta's successor. Political alliances in Kenya are often unstable and ephemeral, and it may well be that by the time the succession takes place the actual composition of these competing alliances will change. However, it seems likely that the struggle will still be between groups within the ruling elite rather than between the ruling elite and the masses. It is also doubtful that the masses will be deeply involved in the essentially intra-elite struggle. It seems likely that the military and para-military forces will remain in the background unless the struggle gets out of hand.

Thus, the stability of the present regime in Kenya would seem to rest not on the personality of Kenyatta but on a strong state apparatus and a solid social basis, and it can survive the succession, the ultimate test of a regime's stability. But without reference to the succession prospect, and to the strength of the regime internally, two potential external factors must be taken into account. Firstly, an economic crisis in the West may have a destabilizing effect on Kenya whose economy is so dependent on foreign investment. A sharp decline in the economic fortunes of Kenya may intensify an intra-elite struggle for rapidly diminishing resources. Such economic conflict will certainly have a deadly effect on the standard of living of the masses. This will create a totally new socio-economic situation which may have a direct effect on the regime's stability. Secondly, foreign military intervention may also have a destabilizing effect on Kenya. Kenya is surrounded by unfriendly and militarily stronger countries like Tanzania, Uganda and Somalia. The tension between Kenya and Uganda in the aftermath of the Entebbe Raid in summer 1976 and the recent resurgence of the idea of a Greater Somalia have caused considerable anxieties in Kenya because of the threat not only to the country's territorial integrity but also to the regime's internal stability.

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